

TENTATIVE RULING

Case: **Magallon v. Fairmount Home Owners Association et al.**
Case No. CV-2025-2357

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendants Fairmount Home Owners Association, Silvercreek Association Management and Trident Property Management's motion for protective order and order staying depositions is **CONTINUED** to **February 3, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Perez v. Wyndham Destinations, Inc., et al.**
Case No. CV-2021-0289

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Benjamin Perez' request to confirm tolling of the five-year period is **DENIED**. (Code Civ. Proc., § 583.340, subd. (c).) Plaintiff has not met his burden to show that circumstances warrant application of the exception to the five-year limitation of Code of Civil Procedure section 583.310. (*Oswald v. Landmark Builders, Inc.* (2023) 97 Cal.App.5th 240, 247, 248.)

Plaintiff's request to specially set trial is **GRANTED**. (Code Civ. Proc., § 128.)

Parties are **DIRECTED TO APPEAR** and should be prepared to select a trial date on or before February 18, 2026, or stipulate to set trial on a later date. (Code Civ. Proc., § 583.340.)